

Election Worker Safety and Privacy

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Concerns about election workers' safety and privacy have been reported in [surveys](#), [news articles](#), and congressional hearings from the 2020 elections through the current election cycle. Those **concerns**, along with a perceived increase in politically motivated job scrutiny, have led some to [leave](#) or consider leaving their positions. This Insight provides a brief overview of recent federal activity on election worker safety and privacy.

Background

Federal law [prohibits](#) certain types of intimidation of or interference with election workers, including [intimidation](#) to discourage service as a poll watcher or election official or in response to such service; [interference](#) by members of the Armed Forces with election officials' exercise of their duties; and intimidation for helping voters [register](#) or [cast a vote](#). Many states have laws that address other threats to election workers, such as through [privacy protections for election commissioners](#). More general laws, such as prohibitions [against voter intimidation](#) or [harassing](#) or [threatening](#) interstate communications, might also apply to some conduct.

Many state and local officials [have responded](#) to the recent reports of threats to election workers with administrative action or legislative proposals. For example, some election officials have [included](#) local law enforcement in poll worker trainings or [implemented](#) new security measures in their offices. Twenty-four states and the District of Columbia [have enacted or updated](#) legislation addressing protections for election workers since 2020, as of July 2025, such as a [New Hampshire law](#) that prohibits intimidating election officials to interfere with their work and an [Oregon law](#) that extended existing privacy protections to election workers. Some Members might choose to defer to state and local officials on any further responses to this issue, while others might see a role for the federal government.

Federal Agency Activity

Following the 2020 elections, the executive branch of the federal government took some new actions on election worker safety and privacy. The Department of Justice (DOJ) [announced](#) a task force in July 2021 to address threats to election workers; and DOJ, the [Department of Homeland Security \(DHS\)](#), and the [Election Assistance Commission \(EAC\)](#) authorized or required grantees to use certain grant funds to help protect elections or election workers. The EAC also [expanded](#) its election security offerings, including

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with resources on [election official security](#) and [mental health](#); and DHS's [Cybersecurity and Infrastructure Security Agency \(CISA\)](#) provided [services](#) to help election officials address [physical](#) and [online](#) threats, [Election Security Advisors \(ESAs\)](#) to help them navigate its services, and funding for an [Elections Infrastructure Information Sharing and Analysis Center \(EI-ISAC\)](#) that [has helped](#) identify and address [safety concerns](#).

The current status of some of that new executive branch activity is uncertain. The [website](#) for DOJ's task force has been archived, with the last noted update as of this writing dating to May 2025. The EAC is [without commissioners](#) following their resignations and removals in [April](#) and [July](#) 2026, although the agency [has indicated](#) that it believes work like administering grants and providing resources can proceed in the absence of commissioners.

DHS proposed eliminating funding for CISA's election security program in the [FY2026 congressional budget justification](#) it released in June 2025 and the [FY2027 budget justification](#) it released in April 2026, proposing cutting the \$39.61 million it reported previously allocating for the program. CISA [discontinued](#) funding for the EI-ISAC in 2025 and reportedly [placed](#) the ESAs on administrative leave. It [did not stand up](#) an Election Day situation room for the 2025 elections as it had in recent election cycles, and some state and local officials [have reported](#) limited access in recent months to services the agency [previously provided](#).

CISA released an updated [election infrastructure security plan](#) for 2026 on September 24. The plan indicates that the agency's Regional Directors are currently serving as ESAs for their regions and that CISA is making an information-sharing platform available to [fusion centers](#) and state and local election officials for the 2026 election cycle. It also lists services the agency offers election officials and its efforts to provide them with security clearances and briefings on election threats.

Congressional Activity

Congress [designated](#) \$39.61 million of the funding it appropriated for CISA in [P.L. 119-86](#) for the agency's election security work, including ESAs and the EI-ISAC. Legislation introduced in the 119th Congress would also provide for federal funding for the [EI-ISAC](#), and [some](#) Members [have written](#) to [DHS](#) and [DOJ](#) to encourage them to continue or clarify the status of activities related to election worker safety and privacy.

Some Members have also introduced measures in the 119th Congress to address other issues related to election worker safety and privacy, including proposals to

- [prohibit](#) intimidating election workers to interfere with or retaliate for performance of official duties;
- [prohibit](#) intimidating any person for exercising EAC or election administration duties or for current or previous status as a participant in election administration;
- [extend](#) an [existing prohibition on intimidation in elections](#) to include intimidation for processing or scanning ballots or tabulating, canvassing, or certifying votes;
- [prohibit](#) intimidating or interfering with election officials by force or violence, with enhanced penalties for bodily injury;
- [prohibit](#) physically damaging polling places, tabulation centers, or other election infrastructure to interfere with election administration or vote tabulation or certification, with enhanced penalties for bodily injury;
- [direct](#) the Office of the Director of National Intelligence, in coordination with other federal entities, to report on threats to elections, including physical and cybersecurity threats;

- **prohibit** interfering with helping voters register or vote, and provide for a private right of action for violations of the prohibition;
- **define** an **existing prohibition on interference in elections by government employees** as including using official authority to affect poll workers' or election officials' actions at polling places and interrupting or delaying voting-related activity;
- **prohibit** unauthorized possession of firearms at election sites, with enhanced penalties for death;
- **establish** a rebuttable presumption that persons carrying visible firearms in certain elections-related contexts are violating an **existing prohibition on intimidation in elections**;
- **prohibit** distributing false artificial intelligence-generated depictions of election officials to intimidate or harass an official;
- **extend** the statute of limitations for violations of existing prohibitions on **intimidation in elections**;
- **extend existing privacy protections** to election workers and their families;
- **direct** DOJ to offer law enforcement and federal attorneys training on threats to election workers and assign special agents to Federal Bureau of Investigation field offices to investigate such threats;
- **establish** a program to provide states with ongoing funding for protecting election workers, among other purposes; and
- authorize grants for **recruiting and training** election workers, **protecting** their personal information, or **providing** them with physical and social media security services.

As of this writing, none of the above measures had advanced beyond committee referral.

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